CONTRACT OF LEASE

KNOW ALL MEN BY THESE PRESENTS:

This Contract of Lease is made and entered into on this ____ day of _____, 2025 in Quezon City, by and between:

UNIVERSITY OF THE EAST RAMON MAGSAYSAY MEMORIAL MEDICAL CENTER, INC., a non-stock, non-profit corporation organized and existing under Philippine laws with principal address at No. 64 Aurora Boulevard, Barangay Doña Imelda, Quezon City, Metro Manila, duly represented by its President and Chief Academic Officer, **Norbert Lingling D. Uy, MD, MEM, MSPH**, hereinafter referred to as "**UERMMMCI;**"

and

MARY GRACE FOOD INC., a corporation organized and existing under Philippine laws, with office address at Lot 25 & 27 Marian Road 2, Marian Business Park Brgy. San Martin De Porres Parañaque City, Metro Manila, represented by its Owner, **MARY GRACE DIMACALI**, hereinafter referred to as **MARY GRACE CAFE.**

W I T N E S S E T H :

WHEREAS, MARY GRACE CAFE has proposed to put an outlet of its restaurant in the premises of UERMMMCI, in consideration of which MARY GRACE CAFE undertakes to make financial contributions for the support of the academic activities of UERMMMCI;

WHEREAS, UERMMMCI has accepted the proposal;

NOW THEREFORE, for and in consideration of the foregoing, the parties have agree as follows:

1. **USE OF SPACE:** MARY GRACE CAFE shall use a portion of space located at the ground floor Charity Building, Hospital Campus, with 50.00 square meters.

2. **TERM:** MARY GRACE CAFE shall use the above described space for a period of five (5) years, from December 1, 2025 to November 30, 2030.

3. **USE OF PREMISES.** -- The Premises shall be used exclusively as food cafe business. It is expressly agreed that if the Premises are used for other purposes without the previous written consent of UERMMMCI, or used to sell items other than what has been agreed upon, UERMMMCI has the option to compel MARY GRACE CAFE to stop operation of the unauthorized activity. The failure to observe the restriction contained herein as on the use of the Premises shall constitute a material breach of the terms of this Contract.

4. **FINANCIAL CONTRIBUTIONS:** MARY GRACE CAFE shall remit to UERMMMCI the amount of One Hundred Ninety Five Thousand Pesos (Php 195,000.00) as its quarterly financial contribution for support for academic activities of UERMMMCI. Thereafter, MARY GRACE CAFE shall give the same financial contribution every first month of each quarter. See payment schedule dates.

Date of Payment	Amount
December 1, 2025	₱ 195,000.00
March 1, 2026	₱ 195,000.00
June 1, 2026	₱ 195,000.00
September 1, 2026	₱ 195,000.00
December 1, 2026	₱ 195,000.00
March 1, 2027	₱ 195,000.00
June 1, 2027	₱ 195,000.00
September 1, 2027	₱ 195,000.00
December 1, 2027	₱ 195,000.00
March 1, 2028	₱ 195,000.00
June 1, 2028	₱ 195,000.00
September 1, 2028	₱ 195,000.00
December 1, 2028	₱ 195,000.00
March 1, 2029	₱ 195,000.00
June 1, 2029	₱ 195,000.00
September 1, 2029	₱ 195,000.00
December 1, 2029	₱ 195,000.00
March 1, 2030	₱ 195,000.00
June 1, 2030	₱ 195,000.00
September 1, 2030	₱ 195,000.00

5. **PROHIBITION AGAINST LEASE.** -- MARY GRACE CAFE shall not sublease any part or portion of the Premises or the whole thereof, without the express consent of UERMMMCI.

6. **SPACE IMPROVEMENTS -** MARY GRACE CAFE shall be responsible of all improvements in the facilities within the agreed space of fifty (50.00) square meters. MARY GRACE CAFE shall submit detailed renovation plan, electrical and equipment load schedule and work program to be approved by UERMMMCI prior to any renovation and facility improvements.

7. **UTILITIES.** -- MARY GRACE CAFE shall be responsible for the installation and maintenance of the utility meters, lighting, and other fixtures and shall be responsible for the prompt payment of all utilities and facilities installed. UERMMMCI shall have no responsibility of any kind for these facilities and utilities. Furthermore, it is expressly understood that UERMMMCI shall not under any circumstances be held responsible for any loss, breakdown, failure, or non-performance of any equipment installed by MARY GRACE CAFE.

8. **HOUSEKEEPING, PEST CONTROL AND WASTE DISPOSAL -** MARY GRACE CAFE shall be solely responsible for the housekeeping, pest control, and waste disposal within the leased premises. MARY GRACE CAFE shall ensure that proper sanitation, cleanliness, and waste segregation practices are observed at all times in accordance with the Medical Center's policies, city government's ordinances, and applicable environmental and health regulations.

9. **TAXES, PERMITS AND LICENSES.** -- MARY GRACE CAFE shall be responsible for securing all necessary government permits and licenses, and shall pay and be liable for all taxes, licenses, permits, duties, levies and such other charges as the Government or any of its instrumentalities and agencies may impose by reason of and arising out of this Lease and its implementation.

10. **INJURY OR DAMAGE.** -- MARY GRACE CAFE hereby assumes full responsibility for all acts its agents, employees or representatives and for any damages arising there from or from her own fault or liability which may be caused to the person or property of third persons, while remaining either casually or on business in any part of the Premises; and MARY GRACE CAFE further binds itself to hold UERMMMCI free and harmless from any claim for such injury or damage. UERMMMCI shall not be responsible for any loss or damage which MARY GRACE CAFE may sustain in the Premises due to any case whatsoever.

11. **COMPLIANCE.** —MARY GRACE CAFE, its personnel, staff, or any third party worker shall comply with all the rules and regulations of UERMMMCI promulgated from time to time.

12. **SECURITY BOND.** – MARY GRACE CAFE shall give a bond to secure faithful performance of the obligations of a Lessee and compliance with the terms and conditions of this Contract, in the amount of **ONE HUNDRED NINETY FIVE THOUSAND PESOS (₱195,000.00)**. This security bond shall be used by UERMMMCI to answer for any damage that may be caused by MARY GRACE CAFE to the Premises, with the balance thereof to be returned to her at the termination of this Contract.

13. **PRE-TERMINATION.** – This Contract may be terminated by either party upon written notice given to the other party at least **Sixty (60) days** prior to date of intended termination, subject to the provisions of the security bond in paragraph 12 of this Contract.

14. **DAMAGE OR DESTRUCTION OF PROPERTY:** If the damage or destruction to the property is due to an accident or a fortuitous event, the appropriate provisions of the Civil Code govern the issue and the rights of the parties. In the absence of an accident or a fortuitous event, the party who caused the damage or destruction must indemnify the party victim.

IN WITNESS WHEREOF, the parties have hereunto set their hands on the date and in the place above-mentioned.

UNIVERSITY OF THE EAST
RAMON MAGSAYSAY MEMORIAL
MEDICAL CENTER, INC.,
(UERMMMCI)

Norbert Lingling D. Uy, MD, MEM, MSPH
President and Chief Academic Officer

MARY GRACE FOOD INC.

Mary Grace Dimacali / ADRIAN P. DIMACALI
Owner

SIGNED IN THE PRESENCE OF:

CHRISTINE JOY BALINAS-ACLIBAN
FINANCE ~~HEAD~~ - OPERATIONS

REPUBLIC OF THE PHILIPPINES)
QUEZON CITY, Metro Manila) *s.s.*

ACKNOWLEDGEMENT

BEFORE ME, a Notary Public for and in the above jurisdiction, personally appeared on this _____ day of _____ 2025, the following persons:

Person	Competent Evidence of Identity	Date/Place of Issue or Expiration (for Passport)
1. Norbert Lingling D. Uy, MD, MEM, MSPH		
2. Mary Grace Dimacali		

Known to me and to me known to be the same persons who executed the foregoing Contract of Lease, consisting of Five (5) pages including the one on which this Acknowledgment is written, each of which is assigned by the parties and their instrumental witnesses on the margins and above their names, and they acknowledged to me that the same is their free and voluntary act and deed, as well as the free and voluntary act and contract of the Corporation represented.

WITNESS MY HAND AND OFFICIAL SEAL affixed on the date and at the place above written.

NOTARY PUBLIC

Doc. No.: _____;
Page No.: _____;
Book No.: _____;
Series of 2025.